

Offshore Petroleum and Greenhouse Gas Storage Act 2006

The National Offshore Petroleum Safety and Environmental Management Authority (NOPSEMA) is the assessor for offshore petroleum and greenhouse gas activities in Commonwealth waters. This decision took effect on 28 February 2014 following a strategic assessment of NOPSEMA's environmental authorisation process under the Environment Protection and Biodiversity Conservation Act 1999 (EPBC Act).

The strategic assessment determined that NOPSEMA's environmental authorisation process under the Offshore Petroleum and Greenhouse Gas Storage Act 2006, met the objectives and high environmental standards of the EPBC Act. Petroleum and greenhouse gas activities undertaken in Commonwealth waters, with a few exceptions, no longer require individual referral, assessment or approval under the EPBC Act provided they are undertaken in accordance with [NOPSEMA's Program](#).

Guidance framework for supporting cooperative coexistence of seismic surveys and commercial fisheries

The Australian Government has developed a guidance framework to support the cooperation and coexistence of the offshore petroleum industry and Australia's commercial fishing industry when conducting seismic surveys in Australia's Commonwealth marine area.

The framework was co-developed by the [Department of Industry, Science and Resources \(DISR\)](#), the [Department of Agriculture, Fisheries and Forestry \(DAFF\)](#), and the [National Offshore Petroleum Safety and Environmental Management Authority \(NOPSEMA\)](#), with key stakeholders from the offshore petroleum and commercial fishing industries.

The framework aims to facilitate effective cooperation between the petroleum and fishing industries to manage concerns around the potential impacts of seismic surveys on the marine environment and access to fisheries.

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[Guidance framework for Supporting cooperative coexistence of seismic surveys and commercial fisheries in Australia's Commonwealth marine area \(PDF 1.3 MB\)](#)

[Guidance framework for Supporting cooperative coexistence of seismic surveys and commercial fisheries in Australia's Commonwealth marine area \(DOCX 2.3 MB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

Contacting the Department of Agriculture

A request to consult with the Department of Agriculture on the development of an environment plan should be submitted to [Petroleum and Fisheries](#).

Requests need to state that it is for the purposes of consulting under the Offshore Petroleum and Greenhouse Gas Storage (Environment) Regulations 2009. The request should set out the basis of the request for consultation, be succinct and specific to the department's interests but also include enough information to readily determine the advice sought. General notifications will not be considered as consultation requests.

The department will respond to consultation requests within 10 business days of receipt. However, more complex or detailed consultation requests will require a longer processing time and the titleholder will be advised of this within the initial 10 business day period.

Proponents who wish to consult with the department should also consult with the [Australian Fisheries Management Authority \(AFMA\)](#).

The Department of Agriculture as a relevant agency

Under the Program, when developing an environment plan the titleholder is required to consult with:

each Department or agency of the Commonwealth to which the activities to be carried out under the environment plan, or the revision of the environment plan, may be relevant.

The department is the relevant agency where the activity has the potential to impact fishing operations in Commonwealth waters by:

- disrupting existing fishing activities
- causing declines in valuable fisheries resources in the area
- damaging habitat or marine ecosystems on which valuable fisheries resources depend.

Fisheries

The department has an important policy role in promoting the biological, economic and social sustainability of Australian fisheries. The department provides policy advice to the Australian Government on a range of economic and environmental fisheries issues, including the conservation of the marine ecosystems and biodiversity that support commercially valuable fisheries resources.

It is the department's expectation that proposed actions conform to the principles of ecologically sustainable development, including minimising habitat loss and degradation of Commonwealth fisheries.

This includes appropriate management or mitigation if the proposed action creates the:

- threat of serious or irreversible environmental damage to Australian fisheries
- possibility that the health, diversity and productivity of the environment is threatened or has the potential to be degraded
- potential that the short-term or long-term economic, environmental, social and equity considerations are reduced or degraded.

The Commonwealth generally has jurisdiction over commercial fishing operations in Commonwealth waters, with state and territory fisheries agencies assuming responsibility for recreational fishing and commercial fishing in state/territory waters. In general terms, state/territory laws apply to coastal waters (up to three nautical miles) and Commonwealth laws apply from those waters out to the limit of the Australian fishing zone (200 nautical miles).

Activities such as seismic surveys, drilling, exploration, geotechnical surveys, construction and installation of sub-sea infrastructure have the potential to affect commercially important fish species, their prey and habitats, and the business activities of commercial fishers.

Source: <https://www.agriculture.gov.au/agriculture-land/fisheries/environment/opgga>